

INVESTIGATION POA : CONCISE NOTES

Chapter – 1 : Investigation Management

1. Nature of Investigation Management.

1.1. **“Investigation”**: A systematic and thorough examination or inquiry into something or someone (the collection of facts and information) and the recording of that examination in a report.

1.1.1. Applies equally in both the public and private sectors

1.1.2. Clearly covers the broad range of investigations, from background checks to administrative inquiries to, criminal matters

1.2. Purpose of conducting Investigations.

1.2.1. Documenting incidents

1.2.2. Identifying the cause of undesirable situations

1.2.3. Documenting and correlating facts

1.2.4. Identifying suspects

1.2.5. Compiling information to prove/disprove allegations or implicate/exonerate suspects

1.2.6. To make a decision

2. Qualities of Effective Investigation.

2.1. Objectivity

2.1.1. The ability to remain objective and focused; allowing information, evidence, and interviews to be reported without internal or external biases.

2.1.2. Objectivity requires setting aside personal feelings, opinions, and external influences.

2.1.3. This can be one of the most difficult requirements for the investigator- because it defies human nature.

2.1.4. A logical hypothesis begins with understanding the existing information, evidence, and context of the investigative mission.

2.2. Thoroughness

2.2.1. Corroborating important aspects through different sources is a proven means of achieving thoroughness.

2.2.2. Different types of sources should be consulted to the greatest extent possible.

2.2.3. The investigator must also corroborate statements by witnesses and the subject of interest.

2.2.4. It is imperative to document all leads and information-they may seem irrelevant at the time but later become important to the investigation.

2.3. Relevance

2.3.1. Effectively determining whether information applies to the case, considering an adequate spectrum and depth of details without gathering so much data as to confuse the facts of the case and bog down the investigation or possibly even obscure the truth.

- 2.3.2. The information in question must pertain to the subject of the investigation in some way and with the appropriate level of detail.
- 2.3.3. The appropriate depth of detail is difficult to achieve with some interviewees, especially those who may be **less intelligent or very intelligent** (e.g., scientists and engineers) or people who are nervous, in a hurry, attempting to hide something, or simply very quiet or very talkative.
- 2.3.4. The investigator's job is to ask **open-ended questions** that allow for the free flow of information.

2.4. Accuracy

- 2.4.1. The credibility of a source, whether human, physical, or electronic evidence, or the result of observation or surveillance.
- 2.4.2. Eyewitnesses make mistakes and that their memories can be affected by various factors including the very law enforcement procedures designed to test their memories". According to The Innocence Project, mistaken eyewitness identifications contributed to more than **70 percent** of the wrongful convictions in the United States.
- 2.4.3. In the corporate environment, much credible information on losses, sexual harassment, and other reportable incidents comes from employee tips.
- 2.4.4. If an informant is the **only source of key data**, the informant should be tested at least for consistency. In addition, the information itself must be tested for inherent contradictions.

2.5. Timeliness

- 2.5.1. The ability to complete an investigation quickly, but not too quickly, and to resist pressure by outside forces to inappropriately either rush or stall a case, thereby damaging the quality of the resolution.
- 2.5.2. In investigations, it is important to:
- Open an investigation as soon as possible,
 - Complete an investigation as quickly as possible, and
 - Avoid closing an investigation prematurely.

3. Public Sector Vs Private Sector Investigations.

<u>Aspect</u>	<u>Public Sector</u>	<u>Private Sector</u>
Interest	Serve & protect the society in general	Protect the interests of the company
Measurement	Number of arrests & convictions	Recovery, restitution, mitigation, risk reduction
Degree of Proof	Higher standard	Comparatively lower
Scope	Specific/ Criminal act	Company policy violations
Outcome	Prosecution/ imprisonment	Restitution/ administrative/ employment action

3.1. Private-sector security value is frequently measured in

- Recovery
- Restitution
- Risk reduction

4. Management Issues in Investigations.

- 4.1. Managing investigations entails basic functions of management: planning, organizing, directing, coordinating, and controlling.
- 4.2. Level of investigative management: **strategic, operational, case** level.
- 4.3. The **strategic level** involves high-level management of the entire unit and its relationship with the company's executive leadership. Legal counsel must be involved at this level to ensure the proper focus of investigations relevant to company policy and procedure or civil or criminal statute. This is also where the formal retention of the investigators should occur to establish attorney work product protection.
- 4.4. The **operational level** deals with the technical aspects of the investigative function and how the function works within its department. Such issues as case load, case assessment, quality control, investigative policies and procedures, reporting formats, liaison, team composition, supplies and equipment, evidence management, and outside contracts are considered at this level.
- 4.5. The **case level** involves individual investigations and the particular investigators, investigative techniques, and case management protocols associated with them.
- 4.6. Goals and objectives are critical to the investigation's functions at all three levels. **Goals articulate long-term and overarching end states.** Goals should be consistent with the parent organization's strategic direction and should be incorporated into the IU's mission statement. **Objectives** are based on goals but are **more specific and may be more immediate.**
- 4.7. **Specific, measurable goals are also known as metrics.**

5. Organising for Investigations.

- 5.1. For **small organizations** with infrequent investigative needs, the use of an outside agency or contract service (outsourcing) may be the logical choice.
- 5.2. In **larger organizations** or other environments with a constant need for investigative services, a full-time investigator or investigative staff may be justified.
- 5.3. **The primary goal of a compliance investigation is to provide guidance regarding possible or potential violations of regulatory requirements.**
- 5.4. Cost elements include personnel expenses, contracts and retainers, equipment, consumables, overhead, labour, and office expenses.
- 5.5. **Investigative Unit Budget.** Investigative budgets are difficult to predict accurately. The best approach is to base budget estimates on **historical data.** If no historical information is available, attempts should be made to benchmark with companies that are similar in size, location, and mission.

6. Outsourcing Investigations.

- 6.1. For a corporate investigative function, outsourcing can mean
 - 6.1.1. Complete outsourcing of the investigative function to an outside agency under contract.
 - 6.1.2. Contracting out for selected or specialized investigative support services as needed.
- 6.2. The decision to outsource and the outsourcing approach are usually based on a cost-benefit analysis and projected overall investigative needs.
- 6.3. Outsourcing for specialized and expert services, is almost always an important part of the budget and the approach to meet the investigative needs of the organisation.
- 6.4. **Identification of Vendors.**
 - 6.4.1. **Sources** : Word of Mouth & Professional associations.
 - 6.4.2. Ultimately, the responsibility for ensuring the proper training and licensing of contract investigators **lies with the hiring organization** (i.e., the company issuing the contract).

7. Establishing an IU

- 7.1. There is no typical organizational structure for the investigative mission in the corporate environment. Factors such as the industry and the company's mission, size, and scope all play a role in determining how the investigative function looks and how it fits in the organization.
- 7.2. Charter & Policy Statement.
 - 7.2.1. **Charter**: The IU is given credibility and authority through a functional charter issued by the **CEO or an equivalent officer**. This concise document (often one page or less) states the purpose & direction of the investigative function.
 - 7.2.2. **Policy** : Outlines procedures for initiating and conducting investigations.
 - 7.2.3. **Objectives**: The objectives for the unit will include performance metrics and targets for areas of improvement over the subsequent period. **Reviewed Annually**.
- 7.3. Human Resources.
 - 7.3.1. To estimate the appropriate size of the unit, it is necessary to consider the projected case load, nature of cases, geographic area covered, and administrative or other support needs.
 - 7.3.2. The expected type of cases is a key determinant in unit size.
 - 7.3.3. Selecting professional personnel is an important aspect of setting up a proprietary IU.
 - 7.3.4. **Information, interrogation, and instrumentation are referred to as the three "I's" of an Investigator.**

8. Managing Investigations.

- 8.1. Investigative Functions. Types of investigations –
 - 8.1.1. Employee Misconduct.
 - 8.1.2. Lapping: Crediting one account with money from other.
 - 8.1.3. Embezzlement or Defalcation: Appropriation of property by a person to whom it has been entrusted.
 - 8.1.4. Skimming: Keeping some cash
 - 8.1.5. Fraud: General, procurement, insurance, travel etc.

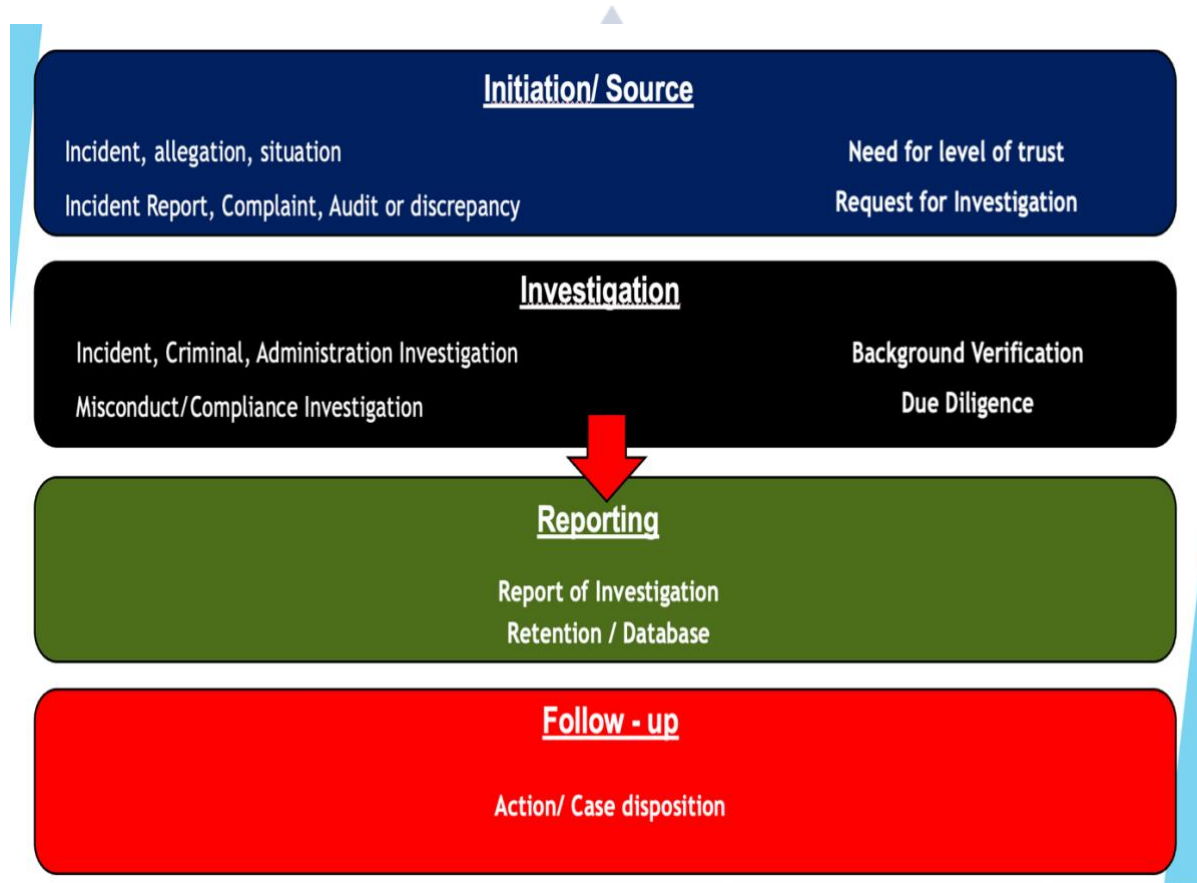
8.2. Investigative Resources.

8.2.1. The principal resources of an IU are **people, information, credibility, physical assets, and financial assets**.

8.2.2. Budget for IU. The best ways to help achieve a favourable budget request is to show value to the organization or to demonstrate that the unit pays for itself.

8.2.3. Costs for personnel and outside services represent the largest budget item for an IU.

8.3. Investigative Life Cycle.



9. Case Management

9.1. Case File.

9.1.1. Contains the following.

- Case type or category;
- Case title or subject (if subject is known);
- File number;
- Location of the precipitating incident, if any;
- Value of assets lost or stolen;
- Assigned investigator
- Date of opening & Closing
- Value of assets recovered

10. Intelligence Collection Cycle.



11. Types of Investigations.

11.1. Incident Investigation

11.1.1 Most common type of Investigation – *Incident investigation*

11.1.2 Initiation event in a pvt sector investigation is the security force - Incident Report

11.1.3 Referred to as ***Complaint Investigations***

11.1.4 Often conducted by Security Supervisor

11.1.5 Protocols to be approved by executive management to lend credibility

11.1.6 The report is often a standardized form

11.2. Misconduct Investigation

11.2.1. Internal investigation - *Employee suspected violating corporate policy, State/ Local law*

11.2.2. Leave employer *open for legal action* by the employees/ former employees

11.2.3. Conflict of Interest issues clearly defined in corporate policy and employee material

11.2.4. Workplace Violence- ***best prevention Pre-employment Background Investigation***

11.2.5. Substance Abuse - Workers with substance abuse are costly to employers

11.2.6. Resource abuse & Internal theft - Significant form of corporate investigation

11.2.7. Diversion Theft: This involves *redirecting company resources*, such as products or funds, to unauthorized locations or accounts.

11.2.8. Conversion : This occurs when an employee *unlawfully* takes company property or funds for *personal use*.

11.2.9. Disguise: In this type of theft, the perpetrator uses *false identities or alters records* to conceal their actions.

11.2.10. Divergence : This involves *diverting company resources* from their intended use for *personal gain*.

11.3. Compliance Investigation

11.3.1. Compliance program built on clear corporate policy & Code of conduct

11.3.2. Employees trained and familiar with code violations – identification & reporting

11.3.3. Key element of any compliance program is *Reporting mechanism*

11.4. Exploratory Investigation

11.4.1. Explain a situation and not a fact-finding investigation

11.4.2. Background screening/ Due diligence

11.4.3. Background investigations rely heavily on *interviews & database searches*

12. Investigative Tools & Techniques.

12.1. **Interviewing** – Witness, Victims, Subject Matter Experts

12.2. **Records & Database** – Assumption: *Information from databases or online sources is credible*

12.3. Evidence Collection & Handling

12.3.1. Key component of investigation.

12.3.2. Types – Physical, Technical/electronic

12.4. Surveillance

12.4.1. *Direct & deliberate observation or monitoring of people, things or places.*

12.4.2. Oldest & most widely used method.

12.4.3. *Can be covert / overt.*

12.4.4. Purpose – *to gain information about identities or activities of those under investigation.*

12.4.5. Types – Physical, Psychological, Data

Chapter -2: Undercover Investigations

1. Undercover Investigations.

1.1. Surreptitious placement of a properly trained and skilled investigator, posing as an employee, vendor, or customer, into an unsuspecting workforce for the primary purpose of gathering information.

1.2. Undercover operations are, by nature, covert operations.

1.3. Undercover investigations are complicated and are not suitable in all environments.

1.4. The chief distinction between undercover and other types of investigations is that the undercover investigator neither conceals his or her presence nor attempts to operate unnoticed.

1.5. Form of interactive investigation.

1.6. **Use Cases** – Employee misconduct, Consistent losses, Drug abuse, Comparison of work practices

1.7. **Not to be conducted.**

1.7.1. Not to be used to gather information of personal & confidential nature

- 1.7.2. Not to investigate any activity permitted or protected by Govt rule or regulation
- 1.7.3. When any other form of investigation will provide same result
- 1.7.4. Not to investigate protected Union activities

2. Need for an Undercover Investigation.

- 2.1. Undercover investigation should only be chosen as a preventive measure when no other alternatives are available, and when the company can reasonably expect a significant return on the investment
- 2.2. Undercover investigation should be the exception, not the rule
- 2.3. Critical to success: Knowing when and how to employ undercover investigations
- 2.4. Undercover is the least understood and most underused form of investigation
- 2.5. The purpose and objectives of an undercover investigation must be clearly identified in advance
- 2.6. A Project Management Team (PMT), consisting of representatives from both the company and the agency, should communicate frequently during the course of the Investigation
- 2.7. Law enforcement agencies and personnel should only become involved when necessary

3. Phases of Investigation.

3.1. Planning

- 3.1.1. Planning is the key to an effective undercover investigation
- 3.1.2. The investigative team formed to handle an undercover investigation should include
 - A corporate decision maker
 - A representative from HR
 - A corporate security professional
 - An attorney familiar with state and local employment law
- 3.1.3. Before deciding how to proceed, an investigative team should review
 - Past practices
 - Industry precedent
 - Organizational policies
 - Applicable labour contracts
 - Criminal definition of the suspected activity
 - Effect on employee relations
 - Public opinion
 - Organization's culture and reputation
 - Potential return on investment
- 3.1.4. Placing an Investigator.
 - **Cold Hire:** Investigator applies for the position and is processed just like any other applicant. ***Preferred but least practical.***
 - **Controlled Hire:** The employment process is manipulated covertly to hire the investigator.
 - A cover story should
 - Be plausible
 - Be determined before assignment
 - Include an explanation of the specifics of identity, and how the job was obtained
 - Be more complex as the relationship with target employees becomes more intimate

- Include a connection with the investigator's actual past
- Include a connection with the target employee(s)' past
- Include backup (proof of claims in the cover story)
- Include documentation of the cover story

3.2. Information Gathering.

3.2.1. The information gathering phase includes two types of assets

- People in the Project Management team
- Processes for communications, reporting, filing

3.2.2. The **Project Management Team** oversees the actual investigative casework; it can be built from the investigative team, but should include five distinct and interrelated individuals

- The undercover investigator
- The project manager
- The client representative
- A corporate attorney
- A law enforcement representative, if necessary

3.2.3. Communication.

- Information can be collected and shared through written reports, electronic communications, and the telephone.
- Written reports are the most fundamental form of communication used in undercover assignments.
- These reports, in their most basic form, detail the **who, what, when, where, how, and why** of the investigator's daily observations and experiences.
- A basic operative report, using a timeline or chronological format.
- The most popular format for investigative reports is the structured narrative.

3.2.4. Case Files.

- After investigation all case documents to be retained.
- Person designated to maintain and archive closed files is called "**Custodian of Record**".
- The file should be **Confidential**, with no reference of the operative or the investigation.
- A major reason to involve legal counsel is to protect the investigator's work product from discovery
- Counsel must be an employment law specialist with experience in cases involving employment claims

3.3. Verification & Analysis.

3.1. Once the operative has been removed, the other members of the PMT take on the task of additional investigative steps.

3.2. The investigation may move from a covert to an overt investigation, for example, by conducting employee interviews. **Interviews are one of the most critical components of the entire undercover investigation.**

3.3. In most general investigations, the **interview process closes in on the perpetrators** over time. However, interviews that follow an undercover investigation often **begin with those most involved and work toward those less involved.**

3.4. Information can come from four sources: information developed by the operative, details provided by the employee during a personal interview, accounts provided by others during their interviews, and physical evidence.

3.4. **Disciplinary & Corrective Action**

3.4.1. When the interview and investigation processes are completed, the project management team turns the information over to the client's decision makers.

3.4.2. Once the discipline and corrective actions have been taken, all files, records, recordings, and evidence should be provided to the case file custodian of record, such as legal counsel, for storage and safekeeping.

3.4.3. Following the disbursement of discipline, communication with the remaining workforce is necessary.

3.5. **Prevention & Education.**

3.5.1. Emphasis on Pre employment screening for correct hires.

3.5.2. Training & awareness of staff.

3.5.3. Workplace crime is a function of three fundamental elements

- The quality of people hired
- The environment
- The quality of supervision

4. **Removing an Operative.**

4.1. Kept as long as possible

4.2. Depart with a "***Plausible explanation***"

4.3. Problem in an undercover investigation - investigation will be exposed or compromised

4.4. When operative has been termed as an offender and others are being terminated

5. **Types of Undercover Investigations.**

5.1. **Drug Investigations.**

5.1.1. Contrary to popular belief, drug investigations, for the most part, are relatively easy and are not always dangerous.

5.1.2. ***Qualify the dealer.***

- Entrapment is best defined as inducing a person to commit a crime.
- To overcome any potential allegation of entrapment (which is not a crime, but a criminal defence), the operative should qualify each person from whom he intends to purchase.
- Qualifying can be one through a simple report covering two points. First, the operative should establish that the behaviour or activity in question was pre-existing, or that the dealer had sold drugs previously. Second, the operative should establish why the dealer wants to sell to him or her.

5.1.3. **Coordinate with Law Enforcement.**

- No drugs should be purchased without the approval of the law enforcement agency with jurisdiction, which is one reason to have an legal representative on the project management team.

- Short of a life threatening circumstance, the operative must never use or even sample illegal drugs.
- The operative should “**buy down**“, meaning purchase **the smallest amount of drugs**
- the dealer is willing to sell (**law enforcement typically “buys up”**, increasing the size of purchases to eventually identify suppliers)
- Purchases should be made on company time
- **Buy-busts** should be initiated at the end of an investigation
- **Sting operations are more complex** versions of the simple buy-bust, usually requiring expense and time to stage
- The most common and most economical form of corroborating evidence is videotape
- In drug and theft cases, multiple buys from the thief makes a stronger case

5.2. Theft Investigations.

- 5.2.1. Undercover investigations are often used to determine if theft is occurring at the workplace.
- 5.2.2. Operatives should try to attract the thieves to them.
- 5.2.3. A well-known undercover axiom says that where one finds substance abuse, one will also find theft.
- 5.2.4. In theft investigations, it is perfectly acceptable for operatives to participate in a scheme to steal. But should be done with an explicit purpose and be preapproved by the project management team.

Chapter – 3: Due Diligence Investigations

1. Definitions.

- 1.1. The care that a prudent person might be expected to exercise in the examination and evaluation of risks.
- 1.2. It takes place when an individual or organization researches an issue, person, deal, or anything else, in an effort to determine whether it is legitimate.
- 1.3. “Due diligence” originated in the securities industry (Securities Act of 1933)
- 1.4. The act protected brokers if they failed to uncover information about a company but did their due diligence
- 1.5. Always based on the “reasonably prudent person” rule
- 1.6. *Diligence emphasizes* the positive aspect of due care, while *negligence describes* the failure to exercise due care
- 1.7. The standard for a due diligence investigation depends on
 - The type of investigation
 - The goals of the investigation
 - The individual conducting the research
 - The available information
 - There is no “absolute” due diligence
- 1.8. When performing due diligence investigations on businesses, capital expenditures should be reviewed for the **last five years**

2. Applications of Due Diligence.

- 2.1. Performed to verify policies, procedures, standards are in line with the organizations goals.

- 2.2. Support of Market entry planning.
- 2.2.1. Protection of intellectual property.
- 2.2.2. Ensuring compliance with laws, regulations and policies.

3. Digital & Cyber aspects of Due Diligence

3.1. Online & Social Media Due Diligence

- 3.1.1. Due diligence investigations often incorporate valuable insights gained from online sources in determining a company's reputation, risks, and negative publicity.
- 3.1.2. Social media research may also help to corroborate information found in other sources and records.
- 3.1.3. Reveal key insights into a brand's reputation and relationship with its customer base.

3.2. Cyber & Data Security Due Diligence

- 3.2.1. Working closely with cyber forensic auditors, information technology and cybersecurity experts, and legal counsel to develop cyber risk profiles and assess cyber incident preparedness, response, and mitigation measures.
- 3.2.2. Security experts, especially those working in cybersecurity functions, should be included early and often in the due diligence process.

4. Techniques & Steps in Due Diligence Investigations

- 4.1. The first step in any due diligence investigation is to examine the issue at hand, the person, the investment etc and understand what factors to focus.

4.2. Information Sources

4.2.1. Primary sources

- Interviews with individuals
- Direct observations of people, places, or events

4.2.2. Secondary Sources

- Government-maintained public records
- Commercial record sources
- Annual reports and other company records
- News and other media sources

4.3. Government records that can provide due diligence information

- 4.3.1. Clerk records (liens, judgments, marriage, divorce, vital statistics)
- 4.3.2. Securities and Exchange Commission filings (annual reports -10K; quarterly reports -10Q)
- 4.3.3. Secretary of State or Division of Corporations (incorporation records for the state)
- 4.3.4. State regulatory agencies and licensing boards (medical professionals, private investigators, gaming, etc.)
- 4.3.5. Uniform Commercial Code filings (UCC reports record commercial debts)

Chapter – 4: Background Investigations & Pre-employment Screenings

1. Need for Background Investigations.

- 1.1. Preventing losses and mitigating the damage caused by a bad hiring decision.
- 1.2. ***Applicant screening & employee socialization are primary loss prevention strategies.***
- 1.3. A background check is a confirmatory type of investigation.
- 1.4. The ASIS Glossary defines **background screening** as an "inquiry into the history and behaviours of an individual under consideration for employment, credit, access to sensitive assets (such as national defence information), and other reasons."
- 1.5. **Preemployment screening** is a process for determining whether a prospective employee is trustworthy or capable of performing the functions required for a particular job. It can include all of the above and may also include any of the following:
 - Drug or alcohol screening;
 - Psychological testing (personality and integrity testing);
 - General intelligence or aptitude testing;
 - Medical screening and physical abilities tests;
 - Polygraph tests; and
 - Specific job-related tests.
- 1.6. **Background investigations and reference checks** are employers' primary means of obtaining useable information about applicants from sources other than the candidates themselves.
- 1.7. A **background investigation** generally involves determining whether an applicant may be unqualified for a position due to a relevant record of criminal conviction, motor vehicle violations, job-specific poor credit history, or misrepresentations concerning education or work history.
- 1.8. A **reference check** involves contacting applicants' former employers, supervisors, co-workers, and educators to verify previous employment, education, and information about the candidate's character, attendance, knowledge, skills, and abilities.

2. Issues that Require Investigation.

- 2.1. Resume fraud.
- 2.2. Employee Theft.
- 2.3. Workplace Violence
- 2.4. Drug & Alcohol Abuse

3. Benefits of Pre-employment Screening.

- 3.1. Primary purpose of background investigation: ***prevent losses & mitigate damages.***
- 3.2. Protect organisations from negligent hiring.
- 3.3. It discourages applicants with something to hide and encourages applicants to be honest during the interview process. Applicants know that the information they provide will be scrutinized.
- 3.4. It demonstrates that a company has exercised due diligence, which may provide legal protection in a lawsuit.

4. Developing a Screening Program.

- 4.1. This investigative function serves the corporate organization by screening applicants in an effort to hire the best people.

4.2. Upper management must first sanction and support the policy.
4.3. Screening programs vary from organization to organization depending on the following

- Access to information,
- Nature of the position,
- Potential liability associated with incorrect performance of a job
- Industry regulations

5. Data Collection.

5.1. A background investigation initially focuses on information provided by the applicant, which is typically found in the employment application, personal history questionnaire, résumé or C.V., and other biographical documents.

5.2. No single screening tool should be used to assess an applicant.

5.3. Resume.

5.3.1. A résumé provides the first indication of whether an applicant is qualified for a position. Important element in pre-screening applicants.

5.3.2. A résumé is a promotional device, and it is difficult to hold an applicant strictly accountable for the information it contains.

5.3.3. A company should not accept a résumé in lieu of an employment application or complete work history.

5.4. Application.

5.4.1. Employment applications are the basic starting point for preemployment screening.

5.4.2. The body of the job application consists of questions used to elicit information that will help the employer determine whether the applicant meets the minimum criteria for the position being filled.

6. Early Application Review & Initial Interview.

6.1. The initial application review is an important tool in the pre-employment screening process.

6.2. Applicant falsifications generally fall into two categories:

6.2.1. **Willfull omissions** of material facts, and

6.2.2. **Mis-representations** of material facts.

6.3. Red Flags in Early Application Review.

6.3.1. Unsigned forms.

6.3.2. Incomplete addresses or post office box numbers.

6.3.3. Conflicting dates of employment, education, or military service.

6.3.4. Gaps in employment : ***gaps in employment or life history-if more than one month should be investigated.***

6.3.5. Changes of occupation: Abnormal employment patterns should be examined.

6.3.6. Incomplete employment information or former employer out of business.

6.3.7. Omission of reasons for leaving.

6.4. Initial Applicant Interview.

6.4.1. Provides a chance to clarify any omissions.

6.4.2. Interviewer should not ask negative questions.

7. Final Selection Phase.

7.1. This is also the point at which the candidate may undergo:

- Drug or alcohol screening;
- Psychological testing (personality and integrity testing);
- General intelligence or aptitude testing;
- Medical screening and physical abilities tests;
- Polygraph tests; and
- Job-related tests.

7.2. Drug & Alcohol Screening.

7.2.1. Because illegal drug and alcohol use can be a serious problem for businesses, federal law in the United States requires mandatory testing for some positions.

7.2.2. A policy to be present outlining when the testing will be conducted, how it will be conducted, and what the ramifications of test results are. The policy must be communicated to all applicants and employees.

7.3. Testing.

7.3.1. The main goal of pre-hire selection tools is to help an employer make informed hiring decisions.

7.3.2. Personality & Integrity Test

- Personality tests provide a psychological measure of an individual's basic characteristics, such as attitudes, emotional adjustment, motivations, interpersonal skills, and interests.
- Integrity or honesty testing measures an applicant's propensity toward undesirable behaviours, such as lying, stealing, and drug or alcohol abuse.
- Categories: Overt or direct testing asks explicit questions about an applicant's past dishonest acts or behaviours, while personality-oriented or indirect tests examine concepts such as dependability and respect for authority.
- Another type of test is biographical questionnaires, which ask open-ended questions.

7.3.3. Intelligence and Aptitude Tests

- Consist of logic problems, word problems, pattern identification, and other kinds of questions.
- Aptitude tests measure cognitive ability in a particular area, such as memory recall, vocabulary, or numerical perception.

7. Investigation Procedures.

8.1.1 Once the decision has been made to conduct preemployment screening and the policy is in place, one must determine how the screening will be accomplished.

The three most common resources are these:

- Security or assets protection department,
- Human resources department,
- Outside consumer reporting and investigative agencies.

Chapter – 5 : Interviewing

1. Interview & Interrogation.

- 1.1. **The interview** is a process of gathering information
- 1.2. “Informational interview” (non-accusatory) (Deming) or “general interview”
- 1.3. “Administrative interview” (simple, unstructured, all interviews other than the subject)
- 1.4. When the interviewee becomes a subject, target or the accused person in the interview, it becomes an interrogation
- 1.5. **An interrogation** is the questioning of an accused or suspect person
- 1.6. “Confrontational interview” (accusatory, highly structured)
- 1.7. “Investigatory interview” (complex, structured process focused on the subject)
- 1.8. A monologue by investigator offering psychological justification for the wrongful behaviour
- 1.9. Key Difference : Person being interviewed

2. Psychological Aspects.

- 2.1. Theft Triangle : ***Desire (Need), Rationalisation (Motive), Opportunity.***

3. Preparation.

3.1. Gathering Information.

- 3.1.1. Information of the Case
- 3.1.2. Interview details – *Who, What, Where*
- 3.1.3. Background info on Interviewee
- 3.1.4. Records review
- 3.1.5. Discussion with Legal counsel
- 3.1.6. The most critical preparatory action before an interview is to become thoroughly familiar with the case information

3.2. Planning the Interview. Key factors in interview planning

- 3.2.1. Location – *environment considered fair*
 - Interviewee Confidentiality, Nature & phase of investigation, Involvement of interviewee
 - Adequate Distance - 5 feet, Clear path of exit
- 3.2.2. Time Factor - Time since incident, Duration of interview
- 3.2.3. Questioning Order - NA later, Most pertinent info, Likely to turn hostile, offender
- 3.2.4. Questions to Ask - Case & likely suspect
- 3.2.5. Persons to be present
 - One or two interviewers and the interviewee are normally the only persons in the room; it is important not to fill the room with interviewers

3.3. The interview environment

- 3.3.1. An interview must be conducted in an environment that an objective outsider would consider fair
- 3.3.2. In every setting, privacy and confidentiality should be maintained
- 3.3.3. The choice of interview site depends on
 - Nature and phase of the investigation
 - The apparent involvement of the interviewee
 - The issue of interviewee confidentiality
 - The desired level of formality

3.3.4. A witness with no apparent involvement in the matter may be interviewed in the office or at home

3.3.5. Uncooperative witnesses should be interviewed in the security office or interview room

4. **Documentation of the Interview.**

4.1. **Audio & Video Recording**

4.1.1. Recording is most reliable for verbatim documentation of evidence from an interview

4.1.2. If the case requires audio recording, it is best if the interviewee consents and the recording is conducted openly

4.1.3. An interview recording should capture at least

- Consent of the interviewee, at the beginning
- Date, time, and place of the interview
- Complete identification of the interviewee
- Identification of all persons present
- Statement of possible uses of the information furnished
- Identification of persons leaving the room, and time of exit
- Identification of persons entering the room, and time of entry
- Start time, stop time, and purpose of any breaks
- Reaffirmation of the interviewee's consent to the interview and recording

4.2. **Notes.**

4.2.1. Note-taking documents the subject's responses

4.2.2. To minimize distraction, the interviewer should briefly note all the subject's responses, using a form of shorthand

4.2.2. The interviewer should note the interviewee's verbal and nonverbal responses

5. **Subject Factors.**

5.1. **Intoxication and Impairment**

5.1.1. Information from person under influence of Alcohol - Unreliable

5.1.2. Interviewer to confirm & note

5.2. **Physical & Psychological Condition**

5.2.1. **Stockholm syndrome:** Hostages form an emotional bond with their captors

5.2.2. **Pygmalion Effect:** A persistently held belief in another person such that the belief becomes a reality

5.2.3. **A stressed person** - Not to be subjected to a lengthy interview

5.3. **Prejudice:** Interviewer/ Interviewee to be avoided.

5.4. **Perception:** Physical & Mental perception of the interviewee should be established in the course of the interview.

6. **Conducting the Interview.**

6.1. **Opening procedures of the interview**

6.1.1. Identify the interviewee

6.1.2. Identify the interviewer

6.1.3. Clarify the interview topic

6.1.4. Establish rapport

6.2. Investigative Questions

6.2.1. To achieve the goal of the interview—truthful information—the interviewer must recognize the emotions and feelings of the interviewee, and must be able to deal with those emotions and feelings with dignity and sensitivity

6.2.2. The general questioning format of the interview is based on

- The pertinent information of the case, including names of those involved
- The elements of proof of the alleged offense

6.2.3. In interviews, the two types of questions generally asked are open and closed

- To put an interviewee at ease, the beginning of the interview should contain “**closed**” questions

- In the primary phase of an interview, a narrative type of questioning should occur (“open”)

- An open-ended question allows for an unlimited response from the witness in his or her own words, thereby generating a greater amount of unsolicited information

- Open-ended responses also tend to be more accurate and promote more effective listening on the part of the investigator

- A closed-ended question, in contrast, limits the amount or scope of information that the witness can provide

- Leading questions suggest an answer and may distort the witness’s perception or memory

6.3. Verbal & Non Verbal Behaviour.

6.3.1. **Verbal responses** include both spoken words and gestures that serve as word substitutes; other verbal cues are

- Tone
- Pitch
- Speed
- Clarity
- The careful listener considers not only the words, but the interviewee’s timing and emphasis

Truthful Person	Deceptive Person
• Makes general, sweeping denials • Offers unqualified, direct, and spontaneous answers • Exhibits a reasonable memory • Responds to questions in a rational manner and a clear tone of voice	• Offers very specific denials • Avoids realistic words • Makes seemingly irrelevant comments • Gives delayed, evasive, or vague answers • Exhibits an unusually poor, selective, or remarkable memory • Qualifies answers or uses religion or oaths to support statements • Speaks in an irrational, fragmented, mumbled, or subdued manner

6.3.2. **Nonverbal responses** include

- Body movements
- Position changes
- Gestures
- Facial expressions
- Eye contact

Truthful Person	Deceptive Person
• Sits upright but not rigid • Positions himself or herself in front of the questioner • Leans toward the questioner when making a point • Appears relaxed and casual	• Slouches or leans back in the chair • Sits unnaturally stiffly • Sits off to the side, not directly in front of the questioner • Pulls elbows close to the side, arms folded and locked in front, with legs crossed • Exhibits rapid and erratic posture changes

6.4. **Activities suggesting deception**

- Significant posture change
- Grooming gestures and cosmetic adjustments
- Supportive gestures

6.5. **Eye Contact**

6.5.1. Deceptive people generally do not look directly at the interviewer

6.5.2. Deceivers either try to avoid eye contact with the interrogator by making compensatory movements or else overreact by staring in a challenging manner

6.5.3. Truthful people are not defensive in their looks or actions and can easily maintain eye contact with the questioner

6.6. **Hand Gestures**

6.6.1. In some cultures, the frequent use of hand gestures to emphasize verbal comments is common

6.6.2. A demonstrative person may use frequent hand gestures to emphasize verbal responses in the course of the interview

6.6.3. A less demonstrative person may avoid hand gestures, but that practice cannot be equated with truth or prevarication

6.7. **Behavioural Analysis Interview**

6.7.1. Developed by John E. Reid

6.7.2. A systematic evaluation of a subject's verbal and nonverbal behaviour during the course of a structured interview in which both investigative and behaviour-provoking questions are asked

6.7.3. Behaviour-provoking questions in a BAI are designed to draw out specific verbal responses or behaviour that can be studied to distinguish between a truthful person and a person who is lying

6.7.4. Consists of more than 30 questions (5 samples follow)

- “Purpose” question -What is your understanding of the purpose of this interview?
- “You” question -If you had anything to do with stealing these missing credit cards, you should tell me now.
- “Knowledge” question -Do you know for sure who did steal any of the missing credit cards?
- “Suspicion” question -Who do you suspect may have stolen these missing credit cards?
- “Vouch” question -Is there anyone with whom you work who you feel is above suspicion and would not do anything like this?”

6.8. Confrontational Interview

6.8.1. **Reid Technique** -four objectives of an interview

- Obtain valuable facts
- Eliminate the innocent
- Identify the guilty
- Obtain a confession

The nine steps of the Reid Technique

- Positive confrontation -accuse subject directly (if guilt is certain) or indirectly (if uncertain) and observe reaction; transition to sympathetic listener
- Theme development -present moral justification, rationalization - minimize involvement
- Handling denials -weaken denials by blocking them -innocent subjects do not move past Step 3
- Overcoming objections -“trait objections” and “factual objections” -respond with detachment
- Keeping attention -ensuring subject listens and does not become focused on guilt and consequences -centre on theme
- Handling passive mood -intensify theme, sympathy, justification for behaviour (rationalization)
- Presenting an alternative question -two options for the reason, both incriminating, seeking admission
- Subject relates details -acknowledge admission to alternative question, have subject relate details, be clear and concise
- Converting the oral confession -leave room, bring in witness, review admissions, obtain written confession

6.8.2. The PEACE Model

- Stands for : **Preparation and Planning, Engage and Explain, Account, Closure and Evaluate.**
- Developed by UK Police and adopted globally.
- Designed to reduce number of false confessions during interrogation.
- Focus on fairness, openness, accountability and fact finding and **NOT gaining Confession.**

6.8.3. The WZ Non – Confrontational Method

- It is structured, conversational approach that results in fewer denials and objections and **eliminates conflict in the interview.**

6.8.4. The Kinesic Interview

- Assesses whether subject is telling the truth via the ***subject's reaction to stress***.
- Often combined with other techniques.
- Analysis of Verbal & Nonverbal responses.

6.9. False Confessions

6.9.1. Four formats of the written confession.

Statement written by the suspect

Statement authored by the interrogator but read and signed by the suspect

Statement taken down by a secretary or stenographer and transcribed into a typed document for the suspect to read and sign

Recorded statement (audio or video) by the suspect

6.9.2. For a written statement or confession to be credible and admissible in U.S. court, it must be given voluntarily, be trustworthy, and include the following essential information

- Date, time, and place where the statement was prepared
- Complete identification of the person making the statement
- All pertinent points of the interview discussion, with particular emphasis on the elements of proof
- An affirmation the statement is made freely after fair treatment and without remuneration, threat, coercion, or promises
- Sequential numbering of every page, with each page signed by the person making the statement
- Signature, on the last page of the statement, of the person making the statement, the interviewer, and a witness

7. Closing Procedures.

7.1. The best closing strategy (besides general conversation) would be asking if there is anything to add and if he or she be called on again

7.2. The interviewer should display appreciation for the interviewee's cooperation

7.3. Even if the interviewee was uncooperative, the interviewer should avoid ending the interview on a hostile note

8. Legal Aspects.

8.1. The interviewer should avoid making any promise or guarantee, explicit or implied, that

- Is illegal
- Cannot be confirmed by the client or senior management, or
- Cannot be fulfilled

8.2. The following may invalidate confessions or statements and may call for civil or criminal action – Coercion, Duress, Psychological constraint, Verbal abuse, Threats.

8.3. Interviewees must understand they are free to leave the interview location

8.4. An indication, expressed or implied, that the interviewee is not free to leave creates the conditions for allegations of false imprisonment

8.5. The interviewee must have access to restroom facilities at reasonable intervals, and especially on request

8.6. In a lengthy interview, time for meals should be scheduled at appropriate times

8.7. If meals and breaks are taken in public, the environment is generally not conducive to a discussion of the interview topic

8.8. Meals and breaks can enhance communication between the interviewer and Interviewee.

Chapter – 6 : Evidence

1. Evidence.

1.1. Evidence is that which provides proof or an indication of an assertion.

1.2. This is a key capability for any corporate or organizational investigative unit.

1.3. Many investigative units outsource evidence collection and analysis specialized investigative firms, crime labs, or consultants, especially in the case of digital evidence.

1.4. Evidence appears ***in oral, documentary, and physical forms***.

1.5. Basic **categories**: direct (real) and indirect (circumstantial and hearsay).

1.6. Direct evidence is first hand knowledge.

1.7. Indirect evidence is a highly informed inference.

1.8. When physical evidence is presented at a trial, a chain of custody-the uninterrupted control of evidence-must be clearly shown, the evidence must be properly identified, and it must be relevant to the case before the court.

2. Oral Evidence.

2.1. Oral evidence is a spoken statement regarding a person's knowledge, which may be direct or indirect and gained through any manner.

2.2. **Materiality** – Rule for determining the importance of evidence

2.3. Exception to Hearsay evidence – dying declaration to a credible witness

2.4. Categories – Direct (real & material) & Indirect (Circumstantial & hearsay)

2.5. Evidence which can be admitted into evidence as Res gestae fall into three headings:

- Words or phrases that either form part of or explain a physical act,
- Exclamations that are so spontaneous as to belie concoction,
- Statements that are evidence as to someone's state of mind.

3. Documentary Evidence.

3.1. Information in the form of letters, figures or other marks.

3.2. Handwriting, Hand printing & Signatures

3.2.1. Security organizations should collect images of anonymous letters and other threatening documents that have been cause for concern.

3.2.2. Handwriting or hand printing must be as close to the original conditions as possible.

3.2.3. Investigators should.

- Ensure that all exemplars are on separate pieces of paper.
- Ensure that the writer and a witness initial and date each page of writing.
- Do not allow the writer to see the previous exemplars or the questioned writing.
- Allow subject to complete numerous repetitions until normal writing has been produced.
- Obtain exemplars from the right and left hands.
- Obtain hand printing exemplars in both uppercase and lowercase letters.

- Obtain a sufficient quantity of exemplars to account for natural variation in the writing.
- Obtain undictated writing, such as business records, personal correspondence, and cancelled checks.

3.2.4. False signatures fall into three main types:

- **Traced signatures** are prepared by using a genuine signature as a template or pattern.
- **Simulated signatures** are prepared by copying or drawing a genuine signature.
- **Freehand signatures** are written in the forger's normal handwriting with no attempt to copy another person's writing style.

3.2.5. **Photocopies**

- Investigators gathering exemplars should obtain 10 copies using each of these methods:
- No document on the glass plate, cover down
- No document on the glass plate, cover up
- Document on the glass plate, cover down
- Document fed through automatic document feeder

4. **Physical Evidence.**

4.1. Physical evidence is **tangible**. It may consist of air particulates, a puddle of liquid, dirt or dust, clothing, tools, electronic devices, weapons, vehicles, bodily fluids, or anything else that can be touched or sensed physically or technologically.

4.2. Physical evidence can be divided into categories:

- **Corpus delicti** relates to the evidence that proves a crime has been committed, such as the body at a homicide scene.
- **Associative evidence** (also known as circumstantial evidence) links a suspect with the scene of a crime, such as fingerprints or DNA.
- **Identifying evidence** is the associative evidence that establishes the identity of a suspect such as a fingerprints, bite impressions, or blood found at the scene.
- **Tracing evidence** (not to be confused with "trace evidence") assists in the possible identification and location of a suspect, such as a credit card receipt or a tag on a piece of clothing.
- **Trace evidence** that will undergo examination in the criminalistics section of a crime lab includes fibres, paints, dyes, glass, and similar elements.
- **Impression evidence** includes firearms, tool marks, bite impressions.

4.3. **Evidence Searches**

4.3.1. Success in the use of physical evidence increases when an incident scene search is planned, coordinated, and executed by knowledgeable security employees, who must keep in mind the following:

- The best search options are often the most difficult and time-consuming.
- Physical evidence cannot be over documented.
- A search may be either a cautious search of visible areas (avoiding evidence loss or contamination) or a vigorous search of concealed areas.

4.3.2. Team Members

Member	Responsibility
Person In-charge	• Ensures scene security • Prepares administrative log • Conducts preliminary survey (initial walkthrough) • Prepares narrative description. • Resolves problems. • Makes final decisions.
Photographer	Photographs & logs evidence and scene
Sketch Preparer	Sketches & logs evidence and scene
Evidence Recorder	Serves as evidence custodian & logs evidence
Scene Supervisor	• Establishes communication with the appropriate corporate executives, including legal counsel. • Obtains evidence collection and packaging materials and equipment. • Prepares the paperwork to document the search. • Provides appropriate protective clothing, communication, lighting, shelter, transportation, equipment, food, water, medical assistance, and security for search personnel.

4.3.3. Procedure

Step	Action
Secure & protect the scene	Take control of the scene immediately Restrict movement
Conduct prelim survey	A tool for planning search. Cautious walk through of the scene. Delineate the extent of the search.
Evaluate evidence possibilities	Focus first on evidence that could be lost. Leave the least transient evidence for last. Search the easily accessible areas and progress to out-of-view locations. Look for hidden items. Ensure sufficient collection & packaging materials
Produce a narrative	Running description of the incident scene. Created using a systematic approach. <i>Evidence is not collected during the narrative.</i>
Photography	important to photograph the incident scene ASAP Before entering the scene, acquire, prior photographs, blueprints, or maps of the scene. Distortion can be caused by an incorrect point of view, improper perspective, and deceptive tones, such as shadows. <i>Photograph from eye level.</i> Start by taking pictures of the most fragile areas of the incident scene There should be images of evidence before it is recovered.

	Take all photographs intended for examination purposes with a scale. Photograph important evidence twice-first, a medium-distance view that shows the evidence and its position relative to other evidence, and second, a close view that includes a scale and fills the frame. Photograph the interior incident scene in an overlapping series using a normal lens, if possible. Photograph the exterior incident scene, establishing the location of the scene by a series of overall photographs including a landmark. Photograph entrances and exits from the inside and the outside. Photographs should have 360 degrees of coverage.
Sketches	Use sketches to record location of items, conditions, and distance and size relationships. Number sketches in a way that coordinates with evidence log numbers.
Physical evidence collection	The scene should be isolated and protected for the preservation of evidence. Choose a search pattern (grid, strip or lane, spiral), and search entrances and exits. Search from the general to the specific. The most common type of physical evidence is fingerprints. Seal all evidence packages at the incident scene. Proper marking of evidence at the time of seizure and transfer establishes the actual chain of custody. Mark directly on the evidence when necessary. The best way to certify a piece of evidence is with the investigator's initials.
Final survey	The final survey is a review of all aspects of the search. Photograph the scene, showing its final condition. Make sure that all evidence is secured, all equipment is retrieved, and no hiding places or areas with difficult access have been overlooked.
Release	After the final survey, consider whether specialists are needed to observe the scene before it is released. Note in release documentation the time and date of release, to whom the scene was released, and by whom it was released. <i>Only the person in charge should release the scene.</i>

Chapter – 7 : Testimony

1. Testimony.

- 1.1. Security employees called to testify are ***paired with legal counsel***.
- 1.2. Laws and rules regarding testimony vary from country to country.
- 1.3. Security employees testimony must always be truthful and follow the court guidelines and counsel's strategy.
- 1.4. A person who gives testimony – Witness – is either a ***fact witness*** or an ***opinion witness***.
- 1.5. **Fact witness** testimony is typically restricted to matters that the witness actually saw, heard, smelled, touched, or tasted.
- 1.6. **Hearsay**— relating what some other person may have said-- may or may not be admissible. A typical hearsay exception regards reporting a person's "**dying declaration**" such as a crime victim's last words identifying the perpetrator.
- 1.7. To be accepted as an ***opinion witness***, also known as an expert witness or forensic witness, one must demonstrate training, education, and experience in a specific subject.

2. Process/ Journey

2.1. **Procedure**

- 2.1.1. Every security incident should be treated as if it could result in a courtroom appearance.
- 2.1.2. Security employees should mark evidence with their initials, the date, and a tracking or report number, in the same location whenever possible.
- 2.1.3. Witnesses should be familiar with any evidence they claim to have marked. They should examine the evidence before taking the stand because its appearance may have changed, and it may appear in a different order than expected.

2.2. **Report**

- 2.2.1. Security employees should provide all relevant reports and notes to counsel for review.
- 2.2.2. It is also appropriate to educate counsel about the expected testimony.

2.3. **Testimony Preparation**

- 2.3.1. Preparation starts with the accurate and timely capture of facts and impressions of the incident in a report or notes.
- 2.3.2. Shortly before testimony, preparation may consist of a site visit and a review of notes, reports, photos, and diagrams.
- 2.3.3. Review of the case with the prosecuting attorney will be conducted to determine the strong and weak points of the case to be presented.
- 2.3.4. Testimonial evidence presented in court may be called "**parol**" or "**spoken word**," and the attorney will want to make sure that it supports the case.

3. Courtroom Participants.

- 3.1. **Judges.** Judges are public officials authorized to decide questions of law brought before a court and are the ultimate authority in regulating the litigation before them.

3.2. Juries

3.2.1. Juries consist of jurors, selected citizens required to render a decision based on the facts presented to them.

3.2.2. Their names are drawn from the voter rolls in a jurisdiction.

3.2.3. Once sworn in, the jury candidates are put through a legal process known as ***voir dire*** where the attorneys and/or judge ask questions to determine their suitability to be on the jury for the trial in question.

3.3. Counsel

3.3.1. Counsel, attorneys, lawyers-these are advocates hired to represent their clients to the best of their ability within the rules of procedure and bounds of integrity.

3.3.2. Security professionals should know that may be in counsel's best interest to point out inconsistencies between testimony given before trial and testimony given at trial.

3.4. **Witness.** Security employees called to testify may serve as either fact witnesses or opinion/expert/ forensic witnesses, and their testimony may be sought either to support or to contradict other evidence.

Chapter – 8: Maximizing the Investigation

1. Investigative Force Multipliers

1.1. The term force multiplier originated in the military arena and applies to such activities as electronic warfare, intelligence operations, and perception management.

1.2. Four important force multipliers in investigations are ***online information sources, liaison, intelligence information, and technology.***

2. Online Information

2.1. **Public record Database.** Public records may include criminal and civil court records, property and land records.

2.1.1. For many investigators, one of the key steps in an investigation is to determine the criminal history of a subject.

2.1.2. The key to effectively using public records databases in an investigation is to understand which agencies are responsible for maintaining certain records and how much, if any, online access they provide to the public.

2.1.3. Three major cautions regarding the use of online information sources

- Investigators spend a great deal of time inefficiently by searching online for the sake of searching online
- There is a natural tendency to assume information extracted from databases or online sources is credible
- While most investigators enjoy searching the Internet, that may not be the best use of their time

2.2. Regulatory Databases

2.2.1. When investigating individuals and companies, regulatory agencies can provide an immense amount of valuable intelligence.

2.2.2. Recommended agencies and regulatory bodies:

- Securities and Exchange Commission (SEC): Search for securities violations

- Office of Foreign Assets Control (OFAC): Search for economic sanctions
- Federal Trade Commission (FTC): Search for legal and enforcement actions
- Environmental Protection Agency (EPA): Search for environmental violations
- Secretary of State or State Corporations Division: Search for corporate filings and business registration records in each state

3. Liaison in Investigation.

3.1. Primarily a proactive medium

3.2. Liaison comes in many forms: internal and external, formal and informal, and individual and organizational.

3.3. Investigative liaison allows investigators to

- Leverage the resources of others
- Share best practices and lessons learned
- Collaborate on specific cases
- More effectively address common issues
- Share information, equipment, and facilities

3.4. Joint Task Forces

- One highly structured form of liaison is Joint Task Force.
- JTFs may be case-specific or longstanding
- JTFs often feature special expertise and cross-jurisdictional boundaries.
- When operating within or managing a JTF, investigators must be alert for a number of other important issues, including parochialism, protection of sensitive information, data management, and reporting chains.
- Parochialism can occur when JTF members arrive with varying agendas, either individual or organizational.
- Members may have different perspectives on what information is sensitive (or over what time particular information is sensitive).
- To minimize challenges, JTFs should have a tailored operations security (OPSEC) plan for the protection of information in both physical and electronic formats.

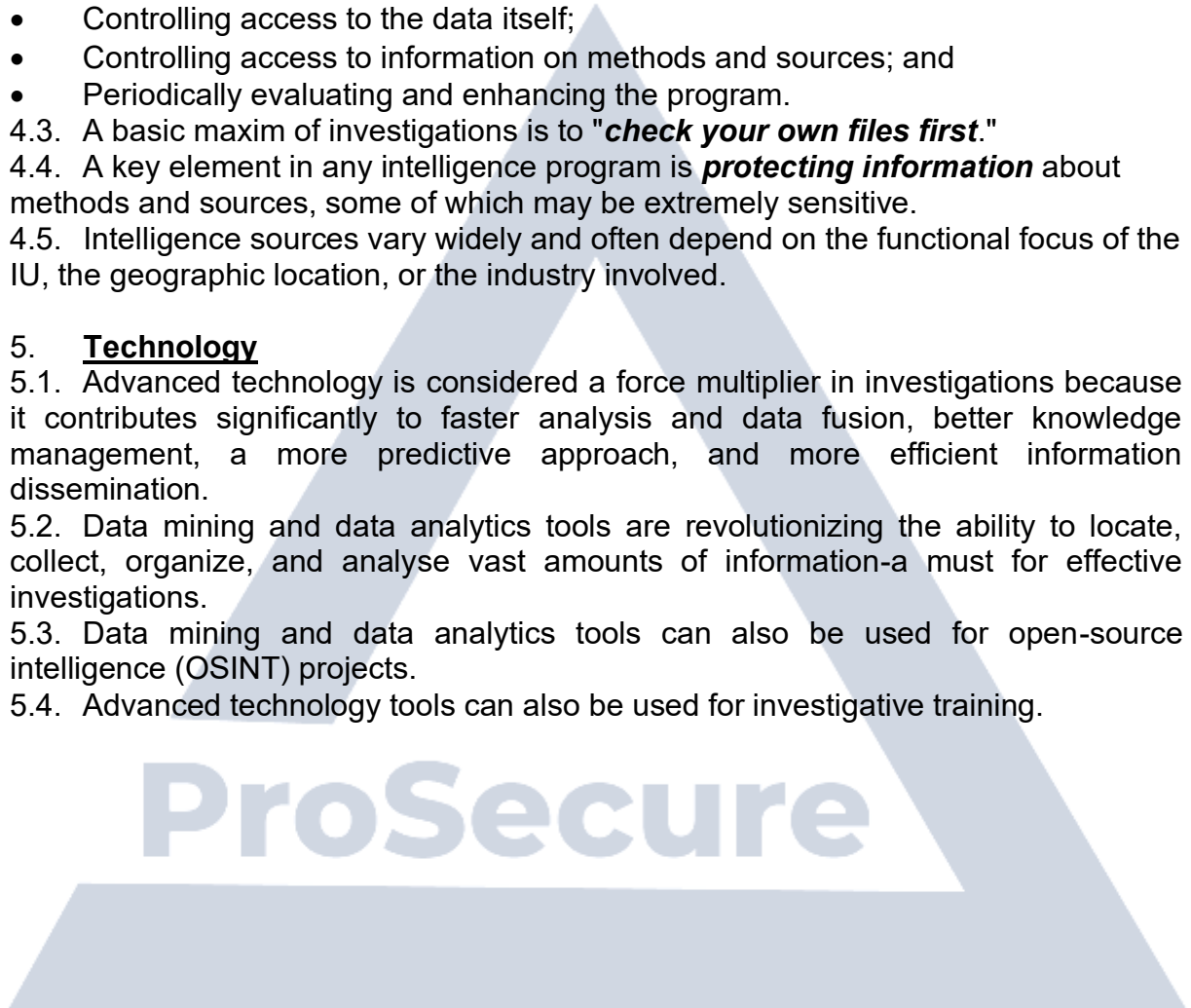


4. Intelligence information.

- 4.1. Although intelligence information is a key force multiplier for IUs.
- 4.2. IU managers should establish a formal intelligence management program that includes policies, procedures, and systems for the following
- Defining general and specific objectives;
 - Gathering intelligence information;
 - integrating and analyzing information;
 - Organizing and storing information;
 - Sharing information internally and externally as appropriate;
 - Retrieving information;
 - Controlling access to the data itself;
 - Controlling access to information on methods and sources; and
 - Periodically evaluating and enhancing the program.
- 4.3. A basic maxim of investigations is to "**check your own files first.**"
- 4.4. A key element in any intelligence program is **protecting information** about methods and sources, some of which may be extremely sensitive.
- 4.5. Intelligence sources vary widely and often depend on the functional focus of the IU, the geographic location, or the industry involved.

5. Technology

- 5.1. Advanced technology is considered a force multiplier in investigations because it contributes significantly to faster analysis and data fusion, better knowledge management, a more predictive approach, and more efficient information dissemination.
- 5.2. Data mining and data analytics tools are revolutionizing the ability to locate, collect, organize, and analyse vast amounts of information-a must for effective investigations.
- 5.3. Data mining and data analytics tools can also be used for open-source intelligence (OSINT) projects.
- 5.4. Advanced technology tools can also be used for investigative training.

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